

2026 SCC OnLine All 5440

In the High Court of Allahabad⁺

(BEFORE SHEKHAR B. SARAF AND ABDHESH KUMAR CHAUDHARY, JJ.)

Teena Sehgal ... Petitioner(s);

Versus

State of U.P. Thru. Prin. Secy. Energy Deptt. Lko.
and 2 Others ... Respondent(s).

Writ - C No. - 1629 of 2026

Decided on April 10, 2026

Advocates who appeared in this case:

Counsel for Petitioner(s): Ajay Kumar Pandey

Counsel for Respondent(s): C.S.C., Manish Jauhari

The Judgment of the Court was delivered by

SHEKHAR B. SARAF, J. and ABDHESH KUMAR CHAUDHARY, J.:— This is a writ petition under Article 226 of the Constitution of India wherein the petitioner is aggrieved by the inaction on the part of the respondents-authorities in not providing a new electric domestic connection with regard to the application made by the petitioner. The facts of the case are that there is a dispute between the mother-in-law of the petitioner and the petitioner. The mother-in-law, who resides on the first floor of the building, is now availing solar energy and is, accordingly, not availing electric domestic connection any more.

2. The learned counsel for the respondents has submitted that an amount of approximately Rs 2,41,000 is pending with regard to the entire premises. The factual matrix also indicates that a suit is pending in the trial court between the petitioner and the mother-in-law of the petitioner.

3. In light of the above facts and circumstances, we are of the view that since the petitioner is residing on the ground floor and there is no dispute with regard to the same, the petitioner is entitled to receive electricity connection. However, it is also undisputed fact that without payment of the electricity bills that are due for the ground floor, the respondent-authority cannot provide such electricity to the petitioner. Accordingly, we direct the petitioner to make payment of Rs 1,20,000 to the respondent- authorities in the following manner:

(a) 50% of Rs 1,20,000 to be paid within a period of two weeks and balance to be paid in four monthly installments starting from July, 2026.

(b) Upon payment of the aforesaid 50%, the respondents-authorities

are directed to immediately provide a new electric connection to the petitioner upon completion of all formalities in accordance with law.

(c) The petitioner shall also provide indemnity bond (Annexure 4.2 of the Electricity Supply Code, 2005) to the respondent authorities in accordance with law with regard to her residence on the ground floor of the premises.

4. We make it clear that apart from the installment payments, the petitioner shall also make payments of the regular bills that may be raised on account of usage of the electricity by her.

5. With the above directions, the writ petition is disposed of.

[†] At Allahabad Lucknow

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